

M/S Dharmendra Rice Mill v. Consumer Grievance Redressal Forum, Purvanchal Vidhut Vitrana Nigam Ltd. and Another

High Court of Judicature at Allahabad · Division Bench · 22 September 2023 · 2023:AHC:183887-DB · Writ - C No. 29525 of 2023 · **Writ disposed; objection to be decided under clause 6.5 within one month.**

HEADNOTE

Writ against an electricity bill disposed of without deciding whether the bill was correct. The objection the consumer would file is to be decided under Clause 6.5 of the U.P. Electricity Supply Code, 2005 within one month, and any legal question may be raised in that objection.

FACTUAL SUMMARY

M/S Dharmendra Rice Mill filed a writ against an electricity bill of Rs.3,59,054.59. On instructions, counsel for the Electricity Department told the Allahabad High Court that an MRI report showed excess use of 125 KW in the first month of 2023, 125 KW in the second month, and 93 KW in the third. After deducting Rs.3,97,835 paid by the mill, a bill of Rs.7,56,850 was served and defended as correct. The mill invoked Clause 6.5 of the U.P. Electricity Supply Code, 2005 and sought a hearing and a fresh bill.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Disputed bill left to a clause 6.5 objection

HOLDING

Without deciding whether the impugned bill was correct, the Court directed that the objection the petitioner would file against that bill be decided in accordance with Clause 6.5 of the U.P. Electricity Supply Code, 2005 within one month, and that any legal question be raised in that objection. The writ petition was disposed of.

¶ 4

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ

The Division Bench declined to examine bill correctness in the writ and disposed of the petition by directing a time-bound decision of the consumer's Clause 6.5 objection. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE IMPUGNED ELECTRICITY BILL, INCLUDING THE MRI EXCESS-USAGE COMPUTATION AND THE RECOMPUTED DEMAND OF RS.7,56,850, WAS CORRECT

Expressly left open. Any legal question was to be raised in the Clause 6.5 objection. ¶ 4